

25STCV19266 25STCV19266

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F21%2F2026

Source SHA-256: d034615b997154318482c02b92870da36cc0bd85633e623ab5cab4530ceb52fc

Case Number: 25STCV19266 Hearing Date: July 21, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 21,

2026 TRIAL

DATE: July 13, 2027

CASE: Elisabetta Rogiani v. Elizabeth V. Gordon, et
al.

CASE NO.: 25STCV19266

MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY
PROCESS AND TO COMPEL FULL AND COMPLETE DISCLOSURE OF ALL APPLICABLE INSURANCE
POLICIES

MOVING PARTY: Plaintiff

Elisabetta Rogiani

RESPONDING PARTIES: Defendants Elizabeth V.

Gordon and Eric Fonseca

CASE HISTORY:

.

07/02/25: Complaint

filed.

TENTATIVE RULING:

Rogiani's Motion for Sanctions and to Compel Full and Complete Disclosure is DENIED.

Moving Party to
give notice.

BACKGROUND

This is a personal injury action. Plaintiff alleges that she was drugged and sexually assaulted at a social gathering, causing her severe and debilitating injuries.

DISCUSSION:

Plaintiff moves for sanctions and to compel full disclosure of all of Defendant Gordon's applicable insurance policies, arguing that Defendant Gordon's discovery responses concealed the full scope of available insurance coverage from Plaintiff. Plaintiff argues that Code of Civil Procedure section 2017.210 expressly authorizes discovery of any insurance policy that may provide coverage for a judgment sought in the action. Plaintiff argues that Defendant denied having any applicable insurance in her original responses, then in supplemental discovery, disclosed only a \$500,000 homeowner's policy while not disclosing a \$3,000,000 excess policy, then sat for her deposition and, when directly asked about policy limits, confirmed only the \$500,000 Standard Fire coverage without ever disclosing the Markel excess policy. Plaintiff argues that Defendant served amended responses in May 2026 disclosing the \$3,000,000 for the first time.

CCP

section 2023.030 authorizes the court to impose a monetary sanction, issue sanction, evidence sanction, or terminating sanction against any party who engages in conduct that is misuse of discovery. (Code Civ. Proc., § 2023.030(a)-(d).)

Misuses of the
discovery process include, but are not limited to, the following:

(a)

Failing to respond or to submit to an authorized method of discovery.

(b)

Making an evasive response to discovery.

(Code Civ. Proc., § 2023.010.)

Courts

have recognized the terminating sanction as a drastic penalty that should be used sparingly because the sanction “eliminates a party’s fundamental right to a trial, thus implicating due process rights.” (Lopez v. Watchtower Bible and Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Discovery sanctions are incremental, starting with monetary sanctions and ending with termination sanctions. (Id.) “[T]erminating sanction[s] should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Id.)

Ultimate discovery sanctions

are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Superior Court (1986) 180 Cal.App.3d 701, 707.)

In opposition, Defendant argues that Plaintiff ignores Defendant’s contemporaneous verified interrogatory responses, which stated that Defendant was searching and would supplement Form Interrogatory No. 4.1.

First,

Plaintiff has not shown that the failure to supplement the discovery response earlier was willful. Further, there is no discovery order violation, or a history of abuse. Further, a motion for issue or evidentiary sanctions requires a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(7).) No separate statement has been filed. Thus, terminating, issue or evidentiary sanctions will not be imposed.

Although Defendant has failed to explain why it did not disclose the \$3,000,000 insurance policy earlier, the Court agrees with Defendant that Defendant's voluntary supplementation of discovery should not be sanctionable. As Defendant points out, Defendant stated in discovery that she was searching for the insurance policies. (Morris Decl., Exh. A.) Thus, it appears Defendant was not initially aware of the excess/umbrella policy, especially considering it was an excess policy, and not the primary policy. Plaintiff has not shown that Defendant and her counsel of record were aware they had the excess/umbrella policy and willfully failed to disclose it. Rather, it appears that the discovery responses were not evasive, but inaccurate based on the lack of information. Further, the deposition questioning cited only asked about the \$500,000 policy. Moreover, the fact that Defendant did not disclose the excess policy at deposition may have been because she was unaware of it at that time.

Next, the

Court also cannot compel responses when no discovery has been presented. It is unclear whether Plaintiff is seeking further responses to certain discovery she has already served or if Plaintiff is seeking an order for Defendant to provide responses to discovery not ever served. If Plaintiff seeks further responses, she must file the appropriate motion, along with a separate statement, and must have complied with the procedural requirement of meeting and conferring, and it must also be timely. If she seeks to compel Defendant's response to discovery that was never served, there is no authority for such relief.

CONCLUSION:

Accordingly, Plaintiffs Motion for Sanctions and to Compel Full and Complete Disclosure is DENIED.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: July 21, 2026

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.